REPORTABLE (13)

JAYESH SHAH
v
PROFFESSOR CHARLES NHERERA

CONSTITUTIONAL COURT OF ZIMBABWE
GARWE JCC, MAKARAU JCC, GOWORA JCC, HLATSHWAYO JCC, BHUNU AJCC, UCHENA AJCC & MAKONI AJCC
HARARE: 19 NOVEMBER 2025, 16 JANUARY 2026, 13 MAY 2026 & 15 JULY 2026

L Madhuku with L Uriri and *T Chagudumba,* for the applicants

T Magwaliba, for the respondent

T Zhuwarara and *D Sanhanga*, as *amici curiae*

GARWE JCC:

[1] This matter is an opposed court application brought in terms of s 85(1) of the Constitution of Zimbabwe, 2013, ("the Constitution"), as read with r 27 of the Constitutional Court Rules, 2025. Leave to approach this Court directly was granted on 21 July 2025. The applicant sought constitutional redress for alleged violations of his fundamental rights by the Supreme Court of Zimbabwe arising from judgment no. S 55/24 delivered under Case No. S 08/22.

[2] Before the Court could embark upon a consideration of the merits of the application, a preliminary issue of considerable constitutional significance arose concerning the composition of the bench designated to hear the matter. That issue had to be determined *in limine*. This judgment deals with that preliminary point.

[3] The preliminary issue stemmed from the fact that, at the commencement of the hearing, it became apparent that the Court was sitting in the absence of the Chief Justice, the

Deputy Chief Justice and another substantive judge of the Constitutional Court. The bench, as constituted, therefore comprised four substantive judges of the Constitutional Court, together with three acting judges appointed from the Supreme Court in terms of the Constitution.

[4] The composition of the Court immediately became the subject of objection by all parties before the Court. It was contended that, regard being had to s 166(3)(a) of the Constitution, a matter concerning alleged infringements of fundamental rights could only competently be heard by all substantive judges of the Court and that the inclusion of acting judges as part of the bench rendered it improperly constituted.

[5] The objection, which raised questions going to the jurisdictional competence and constitutional validity of the Court itself, was considered sufficiently meritorious to warrant full argument before the merits of the application could be entertained. The hearing was accordingly postponed to enable the filing of supplementary heads of argument on the issue, in addition to the Court appointing *amici curiae*.

[6] Following the filing of supplementary heads of argument and the receipt of submissions from the *amici curiae*, the Court heard argument from the parties on the preliminary objection. I summarise the parties' respective submissions hereunder.

APPLICANT'S SUBMISSIONS BEFORE THE COURT

[7] Counsel for the applicant submitted that three substantive judges of the Constitutional Court, namely the Chief Justice, the Deputy Chief Justice and another substantive judge of the Court, ought to have formed part of the quorum for the hearing of the matter but were not part of the sitting bench. Whilst accepting that there may be circumstances in

which members of the Court are unavailable to sit, counsel contended that such absence did not justify the inclusion of acting judges in a matter falling under s 166(3)(a) of the Constitution.

[8] Counsel further submitted that, upon a proper interpretation of s 166(3)(a) of the Constitution, only substantive judges of the Constitutional Court were competent to sit in matters involving alleged infringements of fundamental rights under Chapter 4. It was contended that the Court, as presently constituted, was therefore improperly constituted.

[9] Mr *Madhuku* submitted that there exists no constitutional concept of a "full bench". He argued that matters falling under s 166(3)(a) must be heard by all substantive judges of the Court who are available to sit, to the exclusion of acting judges. In other words, he argued that the Constitution did not impose a mandatory requirement that all seven substantive judges must sit in every matter falling under s 166(3)(a). He submitted that s 161(1) of the Constitution merely dealt with the general composition of courts, whilst the issue of quorum was governed specifically by s 166(3). Counsel argued that all judges who were available and capable of sitting ought to sit.

[10] Counsel also relied on s 4(2) of the Constitutional Court Act [*Chapter 7:22*], which, he contended, requires all judges to sit in hearings falling under s 166(3)(a). He further referred to comparative constitutional practice in the United States of America and South Africa, submitting that constitutional courts in those jurisdictions do not necessarily sit with their full substantive complement in every matter.

[11] Counsel further submitted that the participation of acting judges drawn from the Supreme Court gave rise to a reasonable apprehension of institutional bias. It was argued that the present proceedings involved allegations that the Supreme Court had violated the

applicant's constitutional rights and freedoms. Consequently, judges serving in that Court would be perceived as institutionally conflicted. Counsel further submitted that there was nothing in the Constitution restricting acting appointments to judges drawn from the Supreme Court only. In that regard, it was contended that a judge of the High Court could competently be appointed to act in the Constitutional Court. Reliance was also placed on s 166(2) of the Constitution, which expressly permits the appointment of judges and former judges as acting judges of the Court.

[12] Mr *Madhuku* submitted that the role of acting Judges ought to be limited. The Court then posed a question to him as to whether such appointments ought to be for a given period or for a given case. To this, counsel responded that every appointment has to be for a given period, not a given case.

RESPONDENT'S SUBMISSIONS BEFORE THE COURT

[13] Counsel for the respondent indicated that he was adopting the submissions advanced on behalf of the applicant. He submitted that s 332 of the Constitution defines the term "judge" in relation to courts and that the definition does not include acting judges. Counsel argued that the phrase "all the judges of the Court" in s 166(3)(a), therefore, referred exclusively to substantive judges of the Court.

[14] Counsel further submitted that s 2 of the Constitutional Court Act similarly defines a judge in a manner that excludes acting judges. He contrasted the wording of s 168 of the Constitution, relating to the Supreme Court, which expressly includes additional judges, with s 166, which contains no equivalent provision in relation to the Constitutional Court. It was counsel's submission that the omission was deliberate and demonstrated that acting judges do not form part of the Constitutional Court for purposes of s 166(3)(a).

[15] Counsel further submitted that the participation of Supreme Court judges created an institutional conflict by virtue of their association with the court whose conduct was under challenge. It was argued that acting judges may become acting judges of the Constitutional Court, but not judges of the Constitutional Court as contemplated by s 166(3)(a). Counsel maintained that whilst acting judges may discharge other judicial functions, they could not competently participate in Chapter 4 proceedings or other matters contemplated under s 166(3)(a).

SUBMISSIONS BY AMICI CURIAE

[16] Mr *Zhuwarara*, appearing as *amicus curiae*, submitted that the distinction sought to be drawn between substantive and acting judges was artificial and constitutionally unsustainable. Counsel argued that constitutional provisions must be interpreted holistically and not in isolation. He submitted that s 166(3)(a) does not create any distinction in judicial authority or competence between acting and substantive judges. Counsel further argued that the Constitution envisages a full complement of the Court and that s 183, which generally prohibits a judicial officer from simultaneously holding office in more than one court, does not preclude the appointment of acting judges in circumstances expressly authorised by the Constitution.

[17] On the question of bias, Mr *Zhuwarara* submitted that the issue was sufficiently addressed by the Constitutional Court Act, which already prescribes circumstances in which judges may not preside. He further argued that the mere fact that a judge serves in a court whose decision is under challenge does not diminish judicial independence or impartiality. Counsel further submitted that s 183 expressly recognises circumstances in

which it may yield to other constitutional provisions and must accordingly be read subject to s 166(4), which provides that:

> "Judges or former judges appointed to act under subsection (2) may continue to sit as judges of the Constitutional Court after their appointments have expired, for the purpose of dealing with any proceedings commenced before them while they were so acting."

[18] Ms *Sanhanga*, also appearing as *amicus curiae*, submitted that s 7 of the Constitutional Court Act expressly recognises situations in which judges may be conflicted and provides mechanisms for dealing with such circumstances. Counsel argued that the parties had failed to identify any factual basis demonstrating actual conflict or disqualification on the part of the acting judges presently sitting. She further submitted that there exists no constitutional or statutory prohibition against Supreme Court judges sitting in matters emanating from that Court and that such a prohibition ought not to be implied.

[19] Counsel further submitted that s 5(2) of the Constitutional Court Act expressly authorises the appointment of acting judges and that the phrase "all the judges of the Court" in s 166(3)(a) necessarily includes acting judges lawfully appointed to sit in the Court. She argued that litigants do not have an automatic right to demand the reconstitution of a bench and that any such application must be based on demonstrable legal impediments. Counsel submitted that institutional discomfort alone does not constitute legal disqualification and that no proper basis had been established for the reconstitution of the present bench.

[20] Ms *Sanhanga* further relied on the decision of this Court in *Tsvangirai* v *Mugabe* 2017 (2) ZLR 1 (CC), submitting that this Court had previously recognised the importance of a full bench in minimising the possibility of judicial error. Counsel argued that an

interpretation excluding acting judges from Chapter 4 proceedings would undermine rather than promote the constitutional purpose underlying s 166(3)(a).

APPLICANT'S RESPONSE

[21] In reply, counsel for the applicant submitted that constitutional interpretation requires consideration not only of the text, but also of the broader context, purpose and historical development of the constitutional provisions in question. Reliance was placed on *EFF & Anor* v *Speaker of National Assembly & Ors* [2026] ZACC 17. Mr *Madhuku* submitted that, if acting judges were to be regarded as part of "all judges" under s 166(3)(a), the Court would effectively consist of ten judges rather than seven. On the issue of bias, counsel accepted that judges are presumed to act independently and impartially but submitted that a reasonable observer might nevertheless perceive institutional bias arising from the participation of Supreme Court judges in the present matter.

ISSUE FOR DETERMINATION

[22] The central question for determination is whether, upon a proper construction of ss 166 and 183 of the Constitution, read together with s 5(2) of the Constitutional Court Act, the Constitutional Court can lawfully sit and determine a Chapter 4 matter in circumstances where certain substantive judges of the Court are absent and acting judges from the Supreme Court are appointed in their stead to constitute the bench. Put differently, the question is whether, upon a proper interpretation of ss 166 and 183 of the Constitution, read with s 5(2) of the Constitutional Court Act, acting judges appointed under s 166(2) form part of 'all the judges of the Court' for purposes of s 166(3)(a).

[23] The starting point in constitutional interpretation is the constitutional text itself. As FIELDSEND CJ remarked in *Hewlett* v *Minister of Finance & Anor* 1981 ZLR 571 (S) at 580G:

> "…in general, the principles governing the interpretation of a Constitution are basically no different from those governing the interpretation of any other legislation. It is necessary to look to the words used and to deduce from them what any particular section, phrase or word means, having regard to the overall context in which it appears."

[24] The relevant provision reads:

> "166 Constitutional Court
>
> (1) The Constitutional Court is a superior court of record and consists of—
> (a) the Chief Justice and the Deputy Chief Justice; and
> (b) five other judges of the Constitutional Court;
>
> (2) If the services of an acting judge are required on the Constitutional Court for a limited period, the Chief Justice may appoint a judge or a former judge to act as a judge of the Constitutional Court for that period.
>
> (3) Cases before the Constitutional Court—
> (a) concerning alleged infringements of a fundamental human right or freedom enshrined in Chapter 4, or concerning the election of a President or Vice-President, must be heard by all the judges of the Court;
> (b) other than cases referred to in paragraph (a), must be heard by at least three judges of the Court; but an Act of Parliament or rules of the Court may provide for interlocutory matters to be heard by one or more judges of the Court."

[25] The preliminary objection raises a fundamental constitutional question: whether the phrase "all the judges of the Court" in s 166(3)(a) of the Constitution refers exclusively to substantive judges of the Constitutional Court, or whether it encompasses all judges lawfully constituting the Court for purposes of a particular sitting, including judges appointed in an acting capacity in terms of s 166(2) of the Constitution.

[26] In determining this issue, the Court is enjoined to adopt a purposive, contextual and generous approach to constitutional interpretation. See *Chihava* v *The Provincial Magistrate Francis Mapfumo N.O & Anor* 2015 (2) ZLR 31(S). In *Zimbabwe Homeless People's Federation & Ors* v *Minister of Local Government and National Housing* & Ors S-94-20, it was stated:

> "It is axiomatic that the Constitution must be interpreted in a holistic and seamless fashion. Each provision is to be interpreted, without doing violence to the actual language used, in a manner that is consistent and accords with every other relevant provision, so as to achieve the underlying purpose of those provisions. They must be construed as being mutually complementary rather than as being contradictory to one another. In short, the Constitution must be construed as a unified whole."

[27] The Constitution must be read as a coherent whole, with due regard not only to the language employed by the framers, but also to the practical necessity of ensuring the continued functionality, effectiveness and institutional integrity of the apex court entrusted with safeguarding constitutional supremacy and the protection of fundamental rights.

[28] The starting point is s 166 of the Constitution, which establishes the Constitutional Court. The section provides that the Constitutional Court shall consist of the Chief Justice, the Deputy Chief Justice and five other judges of the Constitutional Court. The language employed by the Constitution is deliberate. It fixes the permanent complement of the Court at seven substantive judges. The Constitution, therefore, predetermines the permanent numerical composition of the Court.

[29] Importantly, the Constitution, as framed, does not contemplate a permanent complement exceeding seven substantive judges. The use of the phrase "shall consist of" is definitive and exhaustive, denoting a mandatory composition. Read in its proper context, it indicates

that the Constitutional Court is to consist of no more than seven substantive judges unless the Constitution itself is amended. Acting appointments under s 166(2) do not enlarge the permanent composition of the Court beyond seven judges. They merely provide a temporary mechanism to ensure the continued functioning of the Court whenever one or more substantive judges are unavailable.

[30] It follows, therefore, that the argument advanced by counsel for the applicant, namely that the inclusion of acting judges would result in the Court having "ten judges", is misconceived. Acting judges do not enlarge the permanent constitutional composition of the Court. They temporarily fill the functional gap created by the absence, inability or disqualification of substantive judges.

[31] That contention cannot be sustained when regard is had to the express provisions of the Constitution governing acting judges. It is necessary, in that regard, to have recourse to the constitutional framework governing the appointment of acting judges. Section 166(2) expressly provides:

> "If the services of an acting judge are required on the Constitutional Court for a limited period, the Chief Justice may appoint a judge or former judge to act as a judge of the Constitutional Court for that period."

[32] Section 166(2) expressly recognises that circumstances may arise in which substantive judges are unavailable to sit. It therefore creates a mechanism to ensure that the Court remains functional notwithstanding the temporary absence or disqualification of one or more of its members.

[33] The Constitution accordingly contemplates the possible absence not only of ordinary judges of the Court, but also of the Chief Justice and the Deputy Chief Justice themselves.

See s 181 of the Constitution. Any contrary interpretation would render s 166(2) largely meaningless. That position is reinforced by s 5(2) of the Constitutional Court Act [*Chapter 7:22*], which provides:

> "If at any stage during the hearing of any matter, any Judge dies or retires or is otherwise unable to sit as a member of the Court or is absent, the Chief Justice shall, for that period, appoint an acting Judge to sit in accordance with the provisions of s 166(2) of the Constitution as read with the provisions of section 166(4) of the Constitution."

[34] The wording of the above provision is deliberate and expansive. It recognises various circumstances under which a judge may not continue sitting, including death, retirement, absence or any circumstance rendering the judge unable to sit. The phrase "otherwise unable to sit" is sufficiently broad to encompass recusal, legal disqualification, illness, incapacity or any circumstance incompatible with judicial participation in proceedings.

[35] The scheme of the Constitution and the Constitutional Court Act is to ensure the continued functioning of the Court notwithstanding vacancies or temporary incapacity of its members. Rather than disabling the Court, the Constitution provides for the appointment of acting judges in terms of s 166(2) so that its work may continue uninterrupted.

[36] The applicant's argument also necessitates consideration of s 183 of the Constitution, which provides:

> "Except as otherwise provided in this Constitution, a person must not be appointed as a judicial officer of more than one court."

[37] Properly construed, the provision establishes the general principle that a person may not simultaneously hold judicial office in more than one court. Significantly, however, the prohibition is expressly qualified by the opening words, "Except as otherwise provided

in this Constitution." Those words recognise that the Constitution itself may create exceptions to the general rule.

[38] Section 166(2) constitutes one such exception. It expressly authorises the Chief Justice, where the services of an acting judge are required for a limited period, to appoint "a judge or former judge to act as a judge of the Constitutional Court for that period." The subsection would serve little purpose if judges serving in other courts were constitutionally precluded from acting in the Court. Read together, ss 166(2) and 183 reveal a constitutional scheme which, whilst generally prohibiting dual judicial appointments, permits temporary acting appointments where the Constitution itself so provides.

[39] Accordingly, the appointment of acting judges in terms of s 166(2) does not offend s 183. Rather, it falls squarely within the exception expressly contemplated by that section.

[40] Section 166(4) reinforces this position. It provides that judges or former judges appointed under s 166(2) may continue to sit as judges of the Court, even after the expiry of their appointments, for the limited purpose of concluding proceedings commenced whilst they were so acting. The subsection recognises that, once lawfully appointed under s 166(2), acting judges become judges of the Constitutional Court for purposes of the proceedings entrusted to them and exercise the same jurisdiction and authority as substantive judges during the period of their appointment.

[41] The present matter illustrates precisely the type of situation contemplated by both the Constitution and the Constitutional Court Act. It is therefore incorrect to suggest that the participation of acting judges somehow dilutes the constitutional composition or standing

of the Court. To hold otherwise would be to disregard the clear constitutional design aimed at ensuring both flexibility and continuity in the administration of justice. In these circumstances, the Court remains properly and validly constituted, notwithstanding the temporary inclusion of acting judges.

Absence of the Chief Justice

[42] A separate consideration arises in relation to the absence of the Chief Justice, the Deputy Chief Justice and a substantive judge of the Court from the present proceedings. In the case of the Chief Justice, it is common cause that he was unavailable to sit owing to administrative commitments. Significantly, the Constitution itself contemplates the possibility that the Chief Justice may be absent or otherwise unable to exercise the functions of office. Section 181(1) of the Constitution provides:

> "181 Acting judicial appointments
>
> (1) If the office of Chief Justice is vacant or if the office holder is unable to perform the functions of the office, the Deputy Chief Justice acts in his or her place, but if both offices are vacant or both office-holders are unable to perform their functions, the next most senior judge of the Constitutional Court acts as Chief Justice."

[43] It is therefore apparent that the Constitution does not proceed on the assumption that the Chief Justice will invariably be available to discharge the functions of office. On the contrary, it expressly contemplates circumstances in which the Chief Justice may be absent, incapacitated or otherwise unavailable and provides mechanisms to ensure continuity in the administration of justice. His temporary absence from the present proceedings cannot, therefore, without more, render the Court incapable of functioning.

Absence of the Deputy Chief Justice

[44] The position of the Deputy Chief Justice stands on a different footing. It is common cause that she formed part of the Supreme Court bench which delivered judgment No. S 55/24, the decision impugned in the present proceedings. Her participation in the hearing of this matter would have been inconsistent with s 7 of the Constitutional Court Act. Section 7 provides:

> "A Judge shall not sit at the hearing of any matter if he or she has previously—
> (a) made a decision in that matter; or
> (b) concurred; or
> (c) registered his or her dissenting remarks; or
> (d) been formally consulted."

[45] The purpose of the provision is to preserve judicial impartiality and maintain public confidence in the administration of justice. Once the Deputy Chief Justice had participated in the proceedings culminating in judgment No. S 55/24, her exclusion from the present proceedings became not merely appropriate but legally obligatory. The prohibition is directed not at the identity of the forum in which the earlier decision was rendered, but at the judge's prior involvement in the matter itself.

[46] Her absence from the present proceedings, therefore, does not support the contention that the Court was improperly constituted. On the contrary, it demonstrates that the Constitution and the Constitutional Court Act contemplate circumstances in which substantive members of the Court may lawfully be unable to sit. It is precisely to cater for such circumstances that s 166(2) empowers the appointment of acting judges whenever their services are required for a limited period.

Effect of section 7 of the Constitutional Court

[47] Counsel for the applicant sought to distinguish the Deputy Chief Justice's position by contending that s 7 only applies where a judge is called upon to sit in the same court in

which the earlier decision was made and not where the matter is being heard in a different court. That submission cannot be accepted. The prohibition contained in s 7 is directed at the judge's prior involvement in the matter itself and not the forum in which that involvement occurred. The operative words of the provision are "any matter". The section does not state that a judge is disqualified only where the subsequent proceedings arise before the same court. Had the legislature intended such a limitation, it would have said so in clear and express terms.

[48] The mischief sought to be addressed by s 7 is self-evident. The provision seeks to uphold the fundamental principle that no person should sit in judgment over his or her own decision. The concern is not institutional identity but prior judicial involvement in the dispute. Whether the subsequent proceedings arise before the same court or before another court is immaterial. What triggers the disqualification is the judge's previous participation in the determination of the matter.

[49] To construe s 7 as applying only within the same court would produce irrational consequences. It would mean that a judge who participated in the determination of a matter in one court could thereafter sit in another court that reviews, reconsiders or passes judgment upon the very decision in which he or she participated. Such an interpretation would undermine the principles of impartiality, fairness and public confidence in the administration of justice which the section seeks to protect.

[50] In the present case, as aforesaid, the Deputy Chief Justice had participated in the Supreme Court proceedings culminating in the judgment now under constitutional challenge. Her exclusion from the present proceedings was therefore not a matter of discretion or convenience. It was a legal necessity arising directly from s 7 of the Constitutional Court

Act. Far from supporting the applicant's objection, her absence demonstrates that both the Constitution and the Constitutional Court Act contemplate circumstances in which substantive members of the Court may lawfully be unable to sit. It is precisely for such circumstances that the Constitution, through s 166(2), provides for the appointment of acting judges to ensure the continued functioning of the Court.

[51] In my view, s 7 is itself demonstrative of the fact that the Constitution and the Constitutional Court Act contemplate circumstances in which substantive judges of the Constitutional Court may lawfully be unable to sit in particular proceedings. The provision necessarily presupposes that the Court must continue functioning notwithstanding such disqualification. It would defeat the very purpose of s 7 if the disqualification of judges automatically rendered the Court incapable of sitting altogether.

Recusal by a substantive judge of the Court

[52] Further, another substantive judge of the Court had *sua sponte* recused himself on account of his personal acquaintance with the parties. In the Court's view, there is no merit in the contention that a recusal can only validly occur in open court. In the case of *Matapo* v *Bhila & Anor* HH 84/10, the High Court of Zimbabwe pertinently stated:

> "Judicial officers generally recuse themselves on their own motion (*sua sponte*), or on application by a party, on realizing the presence of facts disqualifying them from presiding over a case."

[53] The principle emerging from that decision is that the duty to recuse is, in the first instance, a personal judicial obligation arising whenever a judge becomes aware of circumstances capable of compromising, or appearing to compromise, his or her impartiality. The obligation is not always dependent upon an application by the parties, nor is it contingent

upon a formal announcement in open court. Rather, it arises from the fundamental requirement that justice must not only be done but must manifestly be seen to be done.

[54] The position was succinctly articulated in *S* v *Stewe* 2019 (2) NR 359 (SC), at para 14, where the Court stated:

> "The factual ground on which the two learned magistrates recused themselves falls far short of the threshold needed to satisfy the test for recusal. It is indeed correct that on occasion a judicial officer may recuse himself or herself *mero motu* without any prior application and it happens in practice now and again. But whenever it occurs the applicant or the judicial officer who raises recusal should cross the high threshold needed to satisfy the test for recusal. The application for recusal or where it is raised *mero motu* by a judicial officer, cannot be done in vacuo or on the judicial officer's predilections, preconceived, unreasonable personal views or ill-informed apprehensions. To do so would be to cast the administration of justice in anarchy where judicial officers would be at liberty to make choices of which cases to preside over and which not/or applicants to go on a judge forum shopping hoping to get the one who might be favourable to their cases. Judicial officers have 'a duty to sit in any case in which they are not obliged to recuse themselves. At the same time, it must never be forgotten that an impartial judge is a fundamental prerequisite for a fair trial and a judicial officer should not hesitate to recuse herself or himself if there are reasonable grounds on the part of a litigant for apprehending that the judicial officer, for whatever reasons, was not or will not be impartial.' 'Embodied in the test above are two further consequences 'on the one hand, it is the applicant for recusal who bears the onus of rebutting the presumption of judicial impartiality. On the other, the presumption is not easily dislodged. It requires 'cogent' or 'convincing' evidence to be rebutted.'"

[55] These authorities demonstrate that recusal is both an ethical and legal obligation aimed at preserving public confidence in the administration of justice. The *dictum* correctly reflects the settled position that recusal is not to be lightly resorted to. It affirms both the duty of a judicial officer to sit where there is no proper basis for disqualification and the equally important duty to withdraw where a reasonable apprehension of bias is established. It further reinforces the principle that judicial impartiality is presumed and that the presumption is not displaced on the basis of conjecture, suspicion, or subjective perception.

[56] The fact that the judge recused himself before the hearing commenced and not in open court does not affect the validity of the recusal. The high threshold referred to in *Stewe, supra,* is principally directed at contested applications for recusal. It does not preclude a judicial officer, acting in good faith, from withdrawing where circumstances exist that may reasonably give rise to an apprehension of bias. Where a judge, acting in good faith, becomes aware of circumstances that may reasonably give rise to a perception of bias, the duty to recuse may arise independently of any application.

[57] Accordingly, the fact that the recusal occurred before the commencement of the hearing and outside open court does not render it invalid. The decisive question is whether there existed circumstances capable of giving rise to a reasonable apprehension of bias. Once such circumstances were recognised by the judge concerned, nothing in the Constitution or the Constitutional Court Act required him to remain seized with the matter merely to announce his recusal in open court.

[58] This position is reinforced by s 14(1) of the Judicial Service (Code of Ethics) Regulations, 2012, SI 107 of 2012, which provides that:

> "A judicial officer shall disqualify or recuse himself or herself in any proceedings in which the judicial officer's impartiality may reasonably be questioned…".

[59] The provision codifies an objective standard of recusal grounded in the perception of fairness. The relevant enquiry is not whether the judicial officer subjectively believes that he or she can remain impartial, but whether the circumstances are such that a fair-minded and informed observer may reasonably question his or her impartiality. The focus is therefore on the appearance of justice, which is an essential component of judicial legitimacy and public confidence in the administration of justice.

[60] In the present matter, the substantive judge concerned recused himself upon recognising that his personal acquaintance with the parties could potentially give rise to questions regarding his impartiality. That decision was entirely consistent with the ethical obligations imposed upon judicial officers and with the principles governing judicial recusal. There is no legal requirement that a judge must first convene a court session merely to announce a recusal that has already become necessary.

[61] More importantly, the recusal demonstrates yet another circumstance contemplated by both the Constitution and the Constitutional Court Act in which a substantive member of the Court may lawfully be unable to sit. Just as s 7 of the Constitutional Court Act disqualifies judges who previously participated in the impugned proceedings, the law of recusal may render a judge unavailable where considerations of impartiality so require. The Constitution does not assume that all substantive judges will invariably be available to sit in every matter. It recognises that circumstances of disqualification, recusal, illness, absence or other inability to sit will inevitably arise.

[62] It is precisely for that reason that s 166(2) of the Constitution and s 5(2) of the Constitutional Court Act provide a mechanism for the appointment of acting judges whenever the services of additional judges are required. To hold otherwise would mean that the proper recusal of a single judge could render the Constitutional Court incapable of performing its constitutional mandate. Such a result would be contrary to both the text and purpose of the Constitution. It would result in a clear absurdity. The Constitutional Court cannot cease functioning merely because substantive judges of the Court are unavailable. Such a proposition is wholly inconsistent with both the text and purpose of the Constitution.

[63] The suggestion that the Court should simply sit with fewer than seven judges cannot be sustained either. Section 166(3)(a) requires matters concerning alleged infringements of fundamental rights to be heard by "all the judges of the Court." The subsection contemplates that such matters be heard by all judges lawfully constituting the Court for purposes of that sitting. However, the phrase "all the judges of the Court" must necessarily be construed in light of s 166(2). Once acting judges are lawfully appointed to fill vacancies occasioned by absence or disqualification, those acting judges become judges "of the Court" for purposes of the section.

[64] The Constitution, therefore, permits the sitting of a full bench constituted by substantive judges together with acting judges lawfully appointed under s 166(2), provided always that those acting judges were not part of the judgment or proceedings being impugned and are not otherwise disqualified under s 7 of the Constitutional Court Act.

[65] There is no constitutional basis for treating acting judges as possessing lesser judicial authority. Acting judges do not exercise delegated or inferior powers. By virtue of s 166(4), as read with s 166(2), they possess the same powers, jurisdiction and privileges as substantive judges during the period of their appointment.

[66] The further contention that the participation of acting judges drawn from the Supreme Court gives rise to institutional bias is equally without merit. The present challenge is directed against judgment No. S 55/24 and not the Supreme Court as an institution. Once those judges who participated in the impugned proceedings are excluded in accordance with s 7 of the Constitutional Court Act, there exists no legal basis for imputing bias to other judges of that Court merely by reason of their membership thereof. To hold

otherwise would amount to an unwarranted assumption that judges serving in the same court are incapable of approaching a matter independently and impartially.

[67] The law presumes judicial impartiality. See *Mupungu* v *Minister of Justice, Legal and Parliamentary Affairs & Ors* CCZ 7/21; *Bernert* v *Absa Bank Ltd* 2011 (3) SA 92 (CC) para 35. In the absence of cogent evidence demonstrating actual bias or circumstances giving rise to a reasonable apprehension of bias, the mere fact that an acting judge ordinarily serves in the Supreme Court does not *ipso facto* constitute a ground for disqualification. Once judges who participated in the impugned proceedings are excluded, no legal impediment arises to the appointment of other Supreme Court judges to act in the Constitutional Court in terms of s 166(2) of the Constitution. Judges who did not participate in the impugned decision cannot, without more, be presumed to share the views of their colleagues.

[68] On a careful interpretation of the current constitutional framework, the only sustainable conclusion is that the present bench, comprising substantive judges together with acting judges lawfully appointed in terms of s 166(2), is properly constituted to hear and determine this matter.

DISPOSITION

[69] For the foregoing reasons, the Court is satisfied that the temporary appointment of acting judges does not enlarge the permanent composition of this Court, but ensures continuity in the administration of justice whenever substantive judges are unavailable. The preliminary objection to the composition of the Court must therefore fail.

[70] Accordingly, it is ordered as follows:

1. The preliminary objection relating to the composition of the Court be and is hereby dismissed.
2. The matter shall proceed on the merits.
3. There be no order as to costs.

MAKARAU JCC: I agree

GOWORA JCC: I agree

HLATSHWAYO JCC: I agree

BHUNU AJCC: I agree

UCHENA AJCC: I agree

MAKONI AJCC: I agree

Atherstone & Cook, applicant`s Legal Practitioners

Hove & Associates, respondent's Legal Practitioners